

Court No. - 9

Case :- WRIT - C No. - 13321 of 2016

Petitioner :- Ravendra Singh

Respondent :- U.P.P.C.L. And 3 Others

Counsel for Petitioner :- Gaurav Sharma

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Huluvadi G. Ramesh,J.

Hon'ble Raghvendra Kumar,J.

Heard learned counsel for the petitioner and learned counsel representing the respondent-Electricity Board.

By means of present writ petition, the petitioner seeks quashing of the impugned notice dated 5.1.2016 issued by respondent no.3 and also to direct the respondent authority to restore the electricity connection of the petitioner.

It appears that the petitioner holds an electricity connection being no.SKO-3896-034158 for commercial purpose and carries on the business of flour mill (Aata Chakki). The electricity connection of the petitioner was disconnected in the month of April 2013 by the respondent authorities due to non payment of bill for a sum of Rs.15,326/-. Petitioner got the electricity connection reinstated by paying a sum of Rs.32,700/-, which was due upon him upto month of December 2013 including the charges of reconnection of the electricity. Thereafter, again on 26.10.2015 the respondent department has disconnected the electric supply to the petitioner's flour mill showing outstanding dues of Rs.95,773/- towards the connection. The petitioner then approached respondent no.3, who vide its order dated 26.10.2015 asked the petitioner to deposit a sum of Rs.30,000/- for restoration of the electricity connection but, inspite of the required deposit being made by the petitioner along with a sum of Rs.550/- for re-connection on 10.11.2015, the electricity connection was again disconnected showing outstanding dues of Rs.5,67,119/-.

Learned counsel for the petitioner contends that the outstanding dues of Rs.5,67,119/- towards the electricity connection is without any basis and is not in accordance with the business of flour mill, which he carries on with the electricity connection in question. It is further contended that he is ready and willing to file a representation before the respondent authority for correction of the electricity bill showing outstanding dues up to Rs.5,67,119/- under Clause 6.5 of U. P. Electricity Supply Code 2005. It is also surprising that how the amount of Rs.5,67,119/- has been claimed by the respondent Electricity Division when

the previous bill of arrears for the same electricity connection were only upto Rs.32,700/- and Rs.95,773/- and the electricity connection was reinstated on payment of the dues by the petitioner.

In such circumstance, we provide an opportunity to the petitioner to approach the respondent authority for correction of the electricity bill by way of making representation under Clause 6.5 of U. P. Electricity Supply Code 2005 before it within three days from the date of receipt of this order. However, if such representation under Clause 6.5 of U. P. Electricity Supply Code 2005 is filed by the petitioner within the prescribed time, the respondent authority shall consider the same and issue a fresh bill for the said electricity connection after correction and thereafter demand can be raised by the respondent authority against the petitioner. If the petitioner is satisfied he can make the payment within one week and respondent authority is directed to restore the connection immediately. If the petitioner is aggrieved by the correction to be made by the respondent authority, he will be at liberty to file an appeal before the concerned Appellate Authority and the electricity connection shall be restored on compliance of formalities for filing an appeal subject to the finality of the proceeding before the appellate authority.

With the aforesaid observations, this writ petition is disposed of.

Order Date :- 1.4.2016

Manish Himwan